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1055 Budapest
Tel.: +36 1 391-1400
ugyfelszolgalat@naih.hu
Falk Miksa utca 9-11.
Fax: +36 1 391-1410
www.naih.hu

Case number: NAIH-6479-11/2022.
Subject: Partial acceptance of the application

DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) [...] (address: [...] ; hereinafter: Applicant) has received an application on July 25, 2022, regarding the examination of data processing related to cameras installed by [...] (address: [...] ; hereinafter: Respondent). The Authority makes the following decisions in the data protection authority procedure initiated:

1. The Authority partially accepts the Applicant's request and establishes that the Respondent has violated Article 6(1) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation) concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, as well as the repeal of Directive 95/46/EC.
2. The Authority instructs the Respondent, at the request of the Applicant, to cease the unlawful data processing within 30 days from the finality of this decision, and to bring the data processing operation into compliance with legal provisions by:
 - modifying the field of view of the "loophole" camera so that it does not point towards the Applicant's property, or
 - applying a masking function during recording using masking software so that the Applicant's property is not visible, or
 - mechanically obscuring the area of the Applicant's property from the field of view of the "loophole" camera, or
 - dismantling the "loophole" camera.
3. The Authority rejects the remaining parts of the application.

The Respondent must provide written proof of the measures taken as prescribed in point 2 within 30 days from the receipt of this decision, along with supporting evidence, to the Authority.

In case of non-compliance with the obligation under point 2, the Authority will order the enforcement of the decision.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit by filing a statement of claim addressed to the Metropolitan Court within 30 days from the notification. The statement of claim must be submitted electronically to the Authority, which will forward it to the court along with the case documents. A request for a hearing must be indicated in the statement of claim. For those not fully exempt from personal fees, the administrative lawsuit fee is HUF 30,000, and the case is subject to the fee recording right. Legal representation is mandatory in proceedings before the Metropolitan Court.

1 The form for initiating the administrative lawsuit is called NAIH_K01: NAIH_K01 form (2019.09.16.) The form can be filled out using the general form filling program (ÁNYK program). The form is available at the following link: <https://naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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IN D O K O L Á S

I. Procedure of the Azel District

1. On July 25, 2022, the Applicant submitted a request to the Authority to initiate a data protection authority procedure, stating that the Respondent, who is the Applicant's neighbor, installed two cameras at the front of their apartment without prior notification, which likely allows them to monitor not only their own front yard but also the area exclusively used by the Applicant, their gate, and the public area.

According to the Applicant, Camera No. 1 is directed towards the area exclusively used by the Applicant and their entrance gate, and is installed at a height that allows the camera to see over the fence, thus, in the Applicant's view, the Respondent is likely recording when the Applicant leaves their home, but is also monitoring the public area.

The Applicant states that Camera No. 2 is directed towards the Respondent's gate, but due to its height, it is also likely monitoring the public area.

The Applicant claims that they received no prior (nor subsequent) notification regarding the installation of the cameras, is unaware of the type of cameras, their field of view, and does not know the purpose of the Respondent in operating the cameras.

Furthermore, the Applicant infers that since the Respondent is an owner in three companies ([...]), it is possible that these cameras are actually operated by one of those companies, and the Applicant does not know how the recordings are being used.

In their request, the Applicant asked the Authority for the following:

- to oblige the Respondent to present the invoices for the purchase and installation of the cameras to the Authority and to determine exactly who operates the cameras (whether they were purchased and installed in the name of a company);
- to ascertain exactly what types of cameras the Respondent has installed, what the purpose of the surveillance is, and what the cameras' field of view covers;
- to compel the Respondent to provide recordings made on July 22, 2022, between 9:45 and 10:00 AM, as the Applicant believes that it is likely visible on those recordings;
- to determine what is done with the recordings made of the Applicant;
- to ascertain what justified the Respondent's wife looking into the Applicant's property on July 22, 2022, at 10:50 AM;
- to require the Respondent to install the cameras in such a way that neither the Applicant's area, nor the part above the separating fence, nor the public area is visible;
- to compel the Respondent to install a suitably sized and sufficiently attention-grabbing warning sign on the public side of the first apartment's fence to inform passersby;
- to require the payment of damages and/or an administrative fine, as
- they failed to fulfill their obligation to inform when they installed the cameras;
- they did not inform the Applicant or the neighbors in any form about the installation, operation of the cameras, and the use of the recordings;
- they do not inform passersby that the area is under surveillance by security cameras (where recordings are being made of them);

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- The Applicant claims that the Respondent takes recordings on their exclusively used area (without the Applicant's consent and knowledge) and continues to spy after reviewing these recordings.

2. The Authority initiated a data protection authority procedure at the request of the Applicant on July 26, 2022.

3. In order to clarify the facts, the Authority summoned the Respondent to make a statement in its decision dated August 10, 2022, with case number NAIH-6479-2/2022, and again in its decision dated September 14, 2022, with case number NAIH-6479-4/2022. The Respondent responded to the Authority in a letter registered on August 29, 2022, and again on September 28, 2022.

4. Based on the Respondent's responses, the Authority informed the Applicant in its decision dated October 25, 2022, with case number NAIH-6479-6/2022, that the evidentiary procedure in the data

protection authority procedure had been completed and drew attention to the fact that the evidence uncovered during the clarification of the facts could be reviewed in accordance with the rules of document inspection, and further evidentiary motions could be made. The Authority provided the same information to the Respondent in its decision dated the same day, with case number NAIH-6479-7/2022.

5. In a letter registered on October 26, 2022, the Applicant wished to exercise their right to inspect documents by requesting electronic copies of the documents.

The Authority granted the Applicant's request for document inspection in its decision dated November 3, 2022, with case number NAIH-6479-9/2022, and ensured the protection of personal data in accordance with the principle of data minimization under Article 5(1)(c) of the General Data Protection Regulation by providing a simple copy of all documents generated during the procedure that were not sourced from the Applicant and not sent to the Applicant, after rendering personal data that could not be identified by the requesting person unrecognizable, in accordance with Section 2(2) of Government Decree 469/2017 (XII. 28.) regarding procedural costs, reimbursement of costs related to document inspection, payment of costs, and exemption from costs.

6. Following the review of the documents, the Applicant noted in a letter registered on November 4, 2022, that if the Respondent were to present the invoice for the purchase of the cameras, it would prove that either their company or they themselves operate them.

According to their statement, among the camera images sent by the Respondent on August 28, 2022, the camera marked "kiskapu" sees the wire fence separating the two plots, which currently has a privacy screen. At the same time, according to the Applicant's statement, this screen is completely transparent, and their exclusively used area is visible through it. In their opinion, this is why the attached image proves that the Respondent takes recordings of the Applicant's exclusively used area and their family every time they pass by there, all without their knowledge, permission, and consent. The Applicant believes that they have indeed been observed on their own property based on this.

Furthermore, in the same letter, the Applicant stated that the Respondent claimed that they are not required to inform (not even with a sign) that they are taking recordings on their own property. In contrast, the Applicant finds it contradictory that – according to the onsite images – there is a sticker affixed in the upper left corner of the window closest to the cameras, which is not visible from outside. Therefore, in the Applicant's view, the Respondent still does not adequately inform passersby and neighbors that they are conducting camera surveillance on their property.

For the reasons mentioned above, the Applicant continues to request that the Authority grant their original request and compel the Respondent to:

- Immediately cease surveillance on the Applicant's property and reconfigure the camera marked "kiskapu" so that it does not have a view of the separating wire fence and the Applicant's exclusively used area.

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The Applicant requests that the Respondent place a suitably sized and sufficiently attention-grabbing sign in a clearly visible location on the outer side of the street-facing fence, thereby warning passersby and visitors that a camera is in operation.

The Applicant also requested from the Authority whether there is any possibility of compensation or what other sanctions could be imposed against the Respondent to ensure that such unlawful behavior is avoided in the future, and that following the Authority's decision, the Respondent does not dismantle and continue this behavior.

II. Statement of Facts

In letters filed on August 29, 2022, and September 28, 2022, the Respondent stated the following:

According to their statement, they use two cameras, which are installed on the wall of the house on the

terrace, and both only overlook the area that is their private property, for the purpose of preventing burglary and intrusion, and for the safety of their children. To their knowledge, there is no obligation on private property for a separate operator's assignment.

The cameras are IP cameras that connect to a router and have internet access.

No recordings are made of the Applicant, except when they enter the Respondent's private property. However, according to their statement, such an event has not occurred.

The cameras and recorders are not capable of making audio recordings, as they do not have microphones.

Furthermore, according to their statement, they were unable to provide recordings of the Applicant from July 22, 2022, during the period between 9:45 and 10:00 on Fridays, and other recordings made of them, because the cameras can only record for a duration of 72 hours, thus the recordings marked during this period were no longer available to them on the day they wrote their response on August 28, 2022. At the same time, no recordings of the Applicant were made during the specified time or at any other time.

According to their statement, the Respondent is not required to inform the Applicant about the camera surveillance or data processing, because the cameras' field of view does not extend beyond the Respondent's private property, therefore the Applicant is not affected by any information related to the cameras.

The Respondent also provided the condominium floor plan, which is part of the founding document of the condominium, indicating the location of the cameras within the property, as well as the oldest snapshots (dated August 28, 2022) available to them showing the field of view of the two cameras, and the log files from September 2022 related to the cameras that are available to them.

According to the snapshots, the camera marked "gate" overlooks the Respondent's internal courtyard, masked in such a way that it does not see public areas or the Applicant's property. According to the Applicant's statement, the "gate" camera also sees the wire fence separating the two plots, which currently has a visibility-blocking net, and they believe that it can also be seen through the net with a camera.

The camera marked "door" also monitors the Respondent's internal courtyard, using masking techniques, so that public areas and the Applicant's private property do not fall within the camera's field of view.

III. Applicable Legal Provisions

According to Article 2(1) of the General Data Protection Regulation, the General Data Protection Regulation must be applied to the processing of personal data that is carried out in whole or in part by automated means, as well as to the processing of personal data that is not carried out by automated means.

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for their processing, which are part of a registration system or which they wish to make part of a registration system.

According to Article 2(2)(c) of the General Data Protection Regulation: "This Regulation does not apply to the processing of personal data if it is:

c) carried out by natural persons in the course of purely personal or household activities."

According to Recital 18 of the General Data Protection Regulation: "This Regulation does not apply to the processing of personal data by a natural person in the course of purely personal or household activities, which could not be related to any professional or commercial activity. Personal or household activities include, for example, correspondence, address book storage, as well as the maintenance of personal and household activities through social networks and online activities. However, this Regulation shall apply to those data controllers and processors who provide the means for the processing of personal data carried out in the context of such personal or household activities."

According to Section 2(2) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), the General Data Protection Regulation shall be applied with the supplements specified in the provisions set out therein.

According to Section 60(1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure upon request and may also initiate a data protection authority procedure ex officio. The rules of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.) shall apply to the data protection authority procedure with the supplements specified in the Infotv. and with the deviations according to the General Data Protection Regulation.

According to Section 60(2) of the Infotv.: "A request for the initiation of a data protection authority procedure may be submitted in the cases defined in Article 77(1) of the General Data Protection Regulation and in point b) of Section 22."

According to Article 77(1) of the General Data Protection Regulation: "Without prejudice to any other administrative or judicial remedy, every data subject shall have the right to lodge a complaint with a supervisory authority – in particular in the Member State of his or her habitual residence, place of work or place of the alleged infringement – if the data subject considers that the processing of personal data relating to him or her infringes this Regulation."

According to Article 4(1) of the General Data Protection Regulation: "'personal data' means any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person."

According to Article 4(2) of the General Data Protection Regulation: "'processing' means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

According to Article 4(7) of the General Data Protection Regulation: "'data controller' means the natural or legal person, public authority, agency or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the data controller or the specific criteria for the designation of the data controller may also be provided for by Union or Member State law."

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According to Article 5 of the General Data Protection Regulation: "(1) Personal data must be:

- a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency');
- b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest, scientific and historical research purposes, or statistical purposes shall not be considered incompatible with the original purposes in accordance with Article 89(1) ('purpose limitation');
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');
- d) accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate, with respect to the purposes for which they are processed, are erased or rectified without delay ('accuracy');
- e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed; personal data may be stored for longer periods

insofar as the personal data will be processed for archiving purposes in the public interest, scientific and historical research purposes, or statistical purposes, subject to the implementation of appropriate technical and organizational measures required by this Regulation to protect the rights and freedoms of data subjects ('storage limitation');

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality').

(2) The data controller shall be responsible for compliance with paragraph (1) and shall be able to demonstrate such compliance ('accountability')."

According to Article 6(1) of the General Data Protection Regulation: "Processing of personal data shall be lawful only if and to the extent that at least one of the following applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Point (f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks."

According to Section 61(1) of the Infotv., the Authority may apply the legal consequences specified in the General Data Protection Regulation in its decision. According to Article 58(2) of the General Data Protection Regulation: "When exercising its corrective powers, the supervisory authority:

b) shall issue a reprimand to the controller or the processor if the processing activities have infringed the provisions of this Regulation;

d) shall order the controller or the processor to bring processing operations into compliance with the provisions of this Regulation, within a specified period and, where appropriate, in a specified manner;

f) shall impose a temporary or definitive limitation on processing, including a ban on processing."

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IV. Decision

IV.1. The identity of the data controller

According to Article 4(7) of the General Data Protection Regulation, the data controller is the natural or legal person [...], which determines the purposes and means of processing personal data, either alone or jointly with others [...]. Based on the facts established in this case, the Applicant decided on the data processing, the installation of the cameras, and the purpose of operating the cameras, thus he is considered the data controller in terms of camera data processing.

IV.2. The legality of camera data processing

IV.2.1. The distinction between household and non-household data processing

According to Article 4(1) of the General Data Protection Regulation, the image of the data subject is considered personal data. A data subject is an identified or identifiable natural person. In this context, if a natural person can be identified from a recording, then the image captured is considered personal data, and the act of capturing the image is considered data processing.

The use of a camera—based on its placement and the adjustment of its field of view—may be suitable

for monitoring other private areas or public spaces, capturing recordings related to other properties, which may infringe upon the rights of the individuals observed by the camera, as well as their privacy.

According to Article 2(2)(c) of the General Data Protection Regulation, the regulation does not apply, and thus the rules of the General Data Protection Regulation do not need to be applied to the processing of personal data if it is carried out by natural persons solely for personal or household activities (so-called private or household data processing). The General Data Protection Regulation (18) provides examples of personal or household activities, such as correspondence, address book storage, communication on social networks conducted within the framework of personal and household activities, and other online activities. However, it is important to emphasize that—as established by the Court of Justice of the European Union in the so-called Rynes judgment—the exception rule regarding private data processing must be interpreted narrowly. According to this ruling, camera surveillance—inasmuch as it extends to individuals located outside the data controller's private property—does not fall under the aforementioned exception.

This practice has been maintained by the European Data Protection Board in its Guidelines 3/2019 on the processing of personal data through video devices (hereinafter: guidelines). The guidelines state that, in general, the use of a camera surveillance system designed for monitoring one's own property may extend to the boundaries of that property, but it acknowledges that in exceptional cases, there may be situations where the scope of camera surveillance cannot be limited to within one's own property, as this would not provide sufficiently effective protection. Appropriate technical or organizational measures (for example, masking areas that are not relevant to the purpose of the surveillance or...

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In addition to the application of filtering the monitored area with IT tools, the individual is entitled to extend the camera surveillance to the immediate vicinity of their own property.

However, if the individual does not apply solutions that obscure public areas or other private areas within the camera's field of view, or if they operate a camera system that specifically monitors public areas or other private areas, they will become a data controller, and their activities will not be considered private data processing. Therefore, they must comply with all provisions set forth for data controllers in the General Data Protection Regulation (GDPR). By applying masking, the area monitored by the camera can be narrowed down to the area owned by the data controller. However, if the camera's field of view extends beyond the private sphere of the person conducting data processing with the camera surveillance system—such as to public areas, areas owned in common by a condominium, or areas owned by other third parties—it cannot be considered as a "personal or home" activity falling under the above exception. Consequently, the data processing activity in question falls under the scope of the GDPR, which means that, among other things, the principles set out in Article 5 of the GDPR must be adhered to, and a valid legal basis as required by Article 6 of the GDPR is necessary.

In the present case, according to the Applicant, both cameras operated by the Respondent overlook the Applicant's property and public areas.

However, according to the submitted snapshots from August 28, 2022, which show the cameras' field of view, neither camera overlooks public areas. The submitted log files, as well as the logs from events in September 2022, do not contain information indicating that there was any change in the camera settings that would have modified the cameras' field of view at the time of the Applicant's request submission—July 25, 2022.

According to the submitted snapshots, the camera marked "gate" exclusively monitors the Respondent's internal courtyard, applying masking techniques, so that the public area and the Applicant's private area do not fall within the camera's field of view; thus, the camera surveillance and the related data processing do not extend beyond monitoring the Respondent's own property.

Consequently, the Authority does not establish unlawful data processing in connection with the camera marked "gate."

However, the camera marked "small gate" and the related data processing are subject to a different assessment, which the Authority analyzes in point IV.2.2 of this decision.

IV.2.2. The camera monitoring the Applicant and their property

According to the snapshot available to the Authority, the camera marked "small gate" overlooks the Respondent's internal courtyard in such a way that it is masked so as not to see public areas and not to monitor the Applicant's property either. The Applicant's statement is consistent with this, as they confirmed that the camera marked "small gate"—among other things—sees the wire fence separating the two plots, which currently has a privacy screen placed on it. In this regard, the Applicant also indicated that it is possible to see through the screen, in their opinion, even with a camera.

The Authority, upon reviewing the snapshot taken by the camera marked "small gate" submitted by the Respondent, established that there is indeed a privacy screen placed on the wire fence separating the two plots. Nevertheless, as confirmed by the snapshot, it is indeed possible to see through the screen, thus the camera does indeed capture individuals appearing beyond the fence in such a way that they can be identified by the Respondent as a neighbor and as a data controller based on their movement and shape. Therefore, the Respondent does not provide a level of obscuring that would limit the scope of the camera surveillance to the property that is exclusively owned by them.

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Consequently, it can be established that the field of view of the camera marked as "loophole" extends beyond the private sphere of the Respondent to an area owned by a third party, namely the Applicant, and therefore the data processing cannot be considered as private data processing. For this reason, the data processing activities related to the camera marked as "loophole" fall under the scope of the General Data Protection Regulation, which means that, among other things, the principles set out in Article 5 of the General Data Protection Regulation must be adhered to, and a valid legal basis as per Article 6 of the General Data Protection Regulation is required.

Although the camera may potentially be suitable for achieving the personal and property protection objectives indicated by the Respondent, the surveillance of the Applicant and their family, resulting in constant data processing that extends to everyone without limitation, cannot be proportionate to the interest in protecting the personal data of the Applicant. Thus, the Respondent has violated Article 6 of the General Data Protection Regulation by monitoring the Applicant and their property, as the personal data of the Applicant was processed without a valid legal basis.

IV.2.3. Rejection of Further Parts of the Application

1. In addition to the above, the Applicant requested the Authority to:

- oblige the Respondent to present the invoices for the purchase and installation of the cameras to the Authority and determine exactly who operates the cameras (whether they were purchased and installed in the name of a company);
- determine exactly what types of cameras the Respondent has installed, what the purpose of the surveillance is, and what the field of view of the cameras is directed at;
- oblige the Respondent to provide recordings made on July 22, 2022, between 9:45 and 10:00 AM, as the Applicant believes that it is likely visible therein;
- determine what is done with the recordings made of the Applicant;
- determine what justified the Respondent's wife looking in on the Applicant at 10:50 AM on July 22, 2022;
- oblige the Respondent to install a sufficiently large and attention-grabbing warning sign that stands out

from the environment on the public side of the fence of the first apartment to inform passersby;

- oblige the Respondent to pay compensation and/or an administrative fine, as they:

- failed to fulfill their obligation to inform when they installed the cameras;

- did not inform the Applicant or the neighbors in any form about the installation, operation of the cameras, and the use of the recordings;

- do not inform passersby that they are in an area equipped with security cameras (where recordings are being made of them);

- make recordings of the Applicant (without their consent and knowledge) while standing on their exclusively used area, and after reviewing them, continue to spy.

2. According to Section 61 (1) a) of the Infotv., the Authority may apply the legal consequences defined in the General Data Protection Regulation in its decision. Pursuant to Article 58 (2) of the General Data Protection Regulation, the Authority, acting in its corrective capacity, may, among other things:

- condemn the data controller or the data processor if their data processing activities have violated the provisions of this regulation;

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- rejects the data controller or the data processor's request to align its data processing operations – in a specified manner and within a specified time frame, if applicable – with the provisions of this regulation;

- temporarily or permanently restricts the data processing, including the prohibition of data processing.

3. The Applicant's requests, according to which the Authority

- obliges the Respondent to present the invoices issued for the purchase and installation of the cameras to the Authority and to determine exactly who operates the cameras;

- determines exactly what cameras the Respondent has installed, what the purpose of the surveillance is, and what the field of view of the cameras is;

- obliges the Respondent to provide recordings made on July 22, 2022, between 9:45 and 10:00 on Fridays, as the Applicant believes that they are likely visible;

- determines what is done with the recordings made of the Applicant;

- determines what justified the Respondent's wife to look in on the Applicant at 10:50 on July 22, 2022; such questions – except for the last one – for which the answers help clarify the facts, based on which the Authority was able to make its decision, however, these request parts cannot be associated with the legal consequences found in Article 58(2) of the General Data Protection Regulation. The Authority has clarified and presented these questions in this decision. However, the justification for the Respondent's wife looking in on the Applicant at 10:50 on July 22, 2022, is not a data protection issue, and its clarification does not fall within the Authority's jurisdiction.

4. Regarding the Applicant's request that the Authority obliges the Respondent to install a suitably sized and sufficiently eye-catching warning sign on the public side of the fence of the first apartment to inform passersby, the Authority has obliged the Respondent to cease unlawful data processing in such a way that it does not extend beyond the framework of private data processing. If this obligation is fulfilled, the data processing will not fall under the scope of the General Data Protection Regulation, and therefore its provisions cannot be invoked.

5. The application of a data protection fine as a legal consequence does not directly affect the Applicant's rights or legitimate interests; such a decision by the Authority does not create rights or obligations for the Applicant, therefore, regarding the application of this legal consequence falling within the scope of public interest enforcement, the Applicant is not considered a client in relation to the imposition of a fine under Section 10(1) of the Administrative Procedure Act, and – since it does not

meet the requirements of Section 35(1) of the Administrative Procedure Act, there is no place for submitting a request in this regard, this part of the submission cannot be interpreted as a request.

6. Compensation falls within the realm of civil law, which can be adjudicated by civil courts in cases of unlawful damage; therefore, the Authority does not have jurisdiction to adjudicate this.

7. Based on the above, the Authority has rejected these requests.

V. Legal Consequences

1. The Authority, based on Article 58(2)(b) of the General Data Protection Regulation, partially grants the Applicant's request and establishes that the Respondent is unlawfully processing data without a legal basis in violation of Article 6(1) of the General Data Protection Regulation in connection with the camera marked "loophole," as it observes the Applicant and their property.

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2. The Authority, based on Article 58(2)(d) and (f) of the General Data Protection Regulation, instructs the Respondent, at the request of the Applicant, to terminate the unlawful data processing as stated in point 2 of the operative part of this decision and to bring the data processing operation into compliance with legal provisions.

VI. Other Issues

The Authority's competence is defined by Section 38(2) and (2a) of the Infotv., and its jurisdiction extends to the entire territory of the country.

The Authority's current decision is based on Sections 80-81 of the Ákr. and Section 61(1) of the Infotv. The decision becomes final upon its communication in accordance with Section 82(1) of the Ákr. According to Section 112 of the Ákr., and Section 116(1) and (4)(d) of the same, as well as Section 114(1), there is a right to legal remedy against the decision through administrative litigation.

The rules of administrative litigation are defined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12(1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13(3)(a)(aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27(1)(b) of the Kp., in a legal dispute where the court is exclusively competent, legal representation is mandatory. According to Section 39(6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

Section 29(1) of the Kp. and, in this regard, Section 604 of Act CXXX of 2016 on Civil Procedure is applicable, and according to Section 9(1)(b) of Act CCXXII of 2015 on General Rules of Electronic Administration and Trust Services, the client's legal representative is obliged to maintain electronic communication.

The time and place for submitting the statement of claim are determined by Section 39(1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77(1)-(2) of the Kp.

The amount of the administrative litigation fee is determined by Section 45/A(1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the procedure is exempt from the prior payment of the fee under Section 59(1) and Section 62(1)(h) of the Itv.

According to Section 132 of the Ákr., if the Respondent fails to comply with the obligation set forth in the Authority's final decision, it is enforceable. The Authority's decision becomes final upon communication in accordance with Section 82(1) of the Ákr. According to Section 133 of the Ákr., enforcement is ordered by the authority that made the decision unless otherwise provided by law or government decree. According to Section 134 of the Ákr., enforcement is carried out by the state tax authority unless otherwise provided by law, government decree, or a local government regulation in a municipal authority matter. Based on Section 60(7) of the Infotv., regarding the obligation to perform a specific act, to exhibit specific behavior, to tolerate, or to cease, the enforcement of the decision is carried out by the Authority.

Dated: Budapest, December 15, 2022.

Dr. Attila Péterfalvi

President

Associate Professor